

service of the complaint or cross-complaint, demur to the complaint or cross-complaint.”); see CJER, *California Judges Benchbook: Civil Proceedings—Before Trial* (2025) (“CJER Civ. Pro.—Before Trial”), § 12.9.

Second, if Defendant seeks to challenge whether Plaintiff can prove its claims or if they are barred based on evidence beyond the pleadings, then there are a number of procedures available to a defendant to seek a pre-trial determination of such matters, such as a motion for summary judgment. A motion to dismiss in this fashion is not one of them.

Third, even if the Court could somehow reach the merits of Defendant’s Motion to Dismiss, Defendant has not shown that Plaintiff’s claims must be dismissed. By Defendant’s own admission, Plaintiff filed suit within the claimed statute of limitations deadline. That the case may take longer to ultimately be adjudicated has nothing to do with the running of a statute of limitations. The statute of limitations is a law that sets the maximum amount of time within which legal proceedings may be *initiated*. See *Shalabi v. City of Fontana* (2021) 11 Cal.5th 842, 843. As to Defendant’s contentions regarding Plaintiff’s legal standing, Plaintiff has alleged that it is a debt buyer and the sole owner/assignee of the subject account and right to pursue Defendant with respect to any obligations thereunder. See Complaint, ¶9. Whether that is true or not cannot be adjudicated by a motion to dismiss.

Disposition

The Court finds and orders as follows:

1. The Motion to Dismiss is DENIED.
2. The Court shall issue the order.

5. 9:00 AM CASE NUMBER: L25-00802
CASE NAME: CITIBANK, N.A. VS. SANDEEP THIARA
HEARING IN RE: MOTION TO DISMISS
FILED BY: THIARA, SANDEEP
TENTATIVE RULING:

Defendant Sandeep Thiara (“Defendant”) filed a Motion to Dismiss on November 6, 2025 (the “Motion to Dismiss”). The Motion to Dismiss was set for hearing on January 6, 2026. The motion is opposed.

Background

Plaintiff Citibank, N.A. (“Plaintiff”) filed its Complaint against Defendant on January 22, 2025. Defendant filed an Answer on April 14, 2025 (the “Answer”).

Analysis

1. Defendant is Not Entitled to Dismissal of the Complaint Based on Defendant’s Unsupported Contentions Regarding the Merits of Plaintiff’s Claims

Defendant seeks to dismiss the Complaint on several grounds.

Defendant contends that Plaintiff cannot prevail based on various asserted substantive shortcomings, including the assertion that the amount claimed is not owed because Plaintiff “issued a credit on July 12, 2023 in the full amount of \$10,400.00.” Defendant makes assertions about other things, such as Plaintiff failing to fulfill its obligations under the subject agreement.

Defendant’s contentions are procedurally improper. If Defendant seeks to challenge whether Plaintiff can prove its claims or if they are barred based on evidence beyond the pleadings, then there are a number of procedures available to a defendant to seek a pre-trial determination of such matters, such as a motion for summary judgment. A motion to dismiss in this fashion is not one of them.

Defendant’s motion relies on assertions of facts* that, ordinarily, must be adjudicated through a contested trial. Again, if no material dispute of facts exists such that Defendant is entitled to judgment as a matter of law, the proper procedural mechanism would be a motion for summary judgment or summary adjudication.

*As the Opposition points out, to the extent that factual assertions are made in the moving papers, they are wholly unsupported by a proper declaration under penalty of perjury and therefore are not evidence at all.

Disposition

The Court finds and orders as follows:

1. The Motion to Dismiss is DENIED.
2. The Court shall issue the order.

6. 9:00 AM CASE NUMBER: L25-01108

CASE NAME: BANK OF AMERICA N.A. VS. OSCAR VALLADARES ROMERO

***HEARING ON MOTION IN RE: FOR ORDER THAT MATTERS IN REQ FOR ADMISS TRUTH OF FACTS BE DEEMED ADMITT**

FILED BY: BANK OF AMERICA N.A.

TENTATIVE RULING:

Plaintiff Bank of America, N.A. (“Plaintiff”) filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted on October 14, 2025 (the “Motion to Deem Admissions”). The Motion to Deem Admissions was set for hearing on January 6, 2026. Amended motion papers were filed on December 4, 2025, with amended notice of the hearing information. The motion is unopposed.

Background

Plaintiff served Defendant Oscar V. Romero (“Defendant”) with a Requests for Admission (Set One). See Declaration of Gregory Parks filed December 4, 2025 as part of Motion to